Anti-Human Trafficking and Child Labour Policy

1 Purpose and scope

Girl Pride Africa Kenya (GPAK) works with adolescent mothers and pregnant girls aged 13 to 23, many of them out of school, rejected by their families and without income. These are the girls traffickers and exploiters look for. This policy sets out how GPAK makes sure that nothing it does, and no one who works for it, contributes to human trafficking, sexual exploitation, forced labour or child labour, and what GPAK does when it learns that a girl may be at risk.

This policy covers:

- the conduct of everyone it applies to (see Document control), on and off duty, in person and online;
- the design and delivery of GPAK's programmes, including livelihood training, job placement support, housing and transport support;
- GPAK's own recruitment, employment and volunteer arrangements;
- GPAK's suppliers, contractors and partners.

Trafficking risks to a participant that come from outside GPAK (for example a relative arranging a marriage, or a stranger offering work in town) are handled as safeguarding concerns under POL-01 and section 10 of this policy.

2 Policy statement

GPAK has zero tolerance for human trafficking, sexual exploitation, forced labour and child labour. No one working for or with GPAK may take part in, help, benefit from or ignore any of them. Where Kenyan law and this policy differ, the stricter rule applies.

3 Legal basis

- **Counter-Trafficking in Persons Act, No. 8 of 2010 (Cap. 61):** defines and criminalises trafficking in persons and related offences in Kenya.
- **Children Act, No. 29 of 2022:** protects every child under 18 from sale, trafficking, abduction, child marriage, sexual exploitation and harmful child labour.
- **Sexual Offences Act, 2006:** criminalises child trafficking for sexual purposes, child sex tourism and child prostitution, and the sexual exploitation of children.
- **Employment Act, No. 11 of 2007:** sets the rules on forced labour, children's employment, written contracts and wages.
- International standards GPAK follows: the UN Palermo Protocol on trafficking in persons, the ILO conventions on forced labour, minimum age and the worst forms of child labour, and the IASC Six Core Principles relating to sexual exploitation and abuse (see POL-01).

4 Definitions

Term	Meaning in this policy
Human trafficking	Recruiting, transporting, transferring, harbouring or receiving a person, by threat, force, deception, abuse of power or of a person's vulnerability, or by giving payments or benefits to someone who controls her, for the purpose of exploitation. For a child under 18, the threat, force or deception does not have to be shown: moving or receiving a child for exploitation is trafficking.
Exploitation	Includes sexual exploitation, commercial sex, forced labour, servitude, slavery or practices like slavery, forced or child marriage, removal of organs, and using a child in illegal activities or harmful work.

Term	Meaning in this policy
Sexual exploitation	Any actual or attempted abuse of a position of vulnerability, differential power or trust for sexual purposes, including profiting from the sexual exploitation of another person (as defined in POL-01).
Transactional sex	Exchanging money, gifts, food, fish, school fees, rent, a job, transport or any other benefit for sex. Under this policy no one working for GPAK may take part in it, whether or not it is legal or seen as consensual.
Forced labour	Work taken from a person under threat of a penalty, which she has not freely agreed to, including work to pay off a debt or an advance.
Child labour	Work by a child under 18 that is harmful to her health, safety, schooling or development, or that the law does not allow for her age. Training under a GPAK livelihood programme is not employment and must never be used to produce goods or services for anyone's profit.
Child	Anyone under 18 years of age.

5 Why this matters in GPAK's work

The girls GPAK serves face real trafficking and exploitation risks in the counties where it works. Mentor mothers and staff should know the common patterns:

- offers of house-help, shop or bar work in Kisumu, Nairobi or other towns, sometimes through a relative or a person the family trusts, with the baby left behind;
- older men or 'sponsors' offering rent, school fees or phone credit in return for a relationship;
- fish-for-sex exchanges reported in lakeside fishing communities;
- early or forced marriage arranged to settle a pregnancy, a debt or family shame;
- debts to landlords, traders or lenders that are then 'paid' through work or sex;
- online contacts on social media or WhatsApp promising jobs, travel or modelling.

GPAK's livelihood, job placement, rent and transport support reduce these risks only if they are delivered safely. Badly run, the same support could expose a girl to exploitation. Section 7 sets the safeguards.

6 Prohibited conduct

No one this policy applies to may:

1. Take part, directly or indirectly, in any stage of trafficking: recruiting, moving, hiding, receiving or exploiting a person.
2. Offer or exchange money, employment, goods, services or any GPAK support for sex, sexual favours or other degrading behaviour, including buying commercial sex, even where it would be legal or seen as consensual.
3. Have a sexual relationship with a participant, or with any child (POL-01 and POL-02).
4. Arrange, encourage or take part in the marriage of a child.
5. Use forced labour or child labour in any GPAK work, in their own home or business, or in any business that supplies GPAK.
6. Take, hide, hold or destroy anyone's identity documents. GPAK may keep a copy of a document only with the person's consent; originals are always returned the same day.
7. Mislead anyone about a job, training or placement, or charge any fee for recruitment, selection into a GPAK programme, a placement or a reference.
8. Refer or introduce a participant to an employer, landlord, transporter or 'sponsor' who has not been checked under section 7.
9. Knowingly buy goods or services produced with forced or child labour.
10. Ignore, hide or fail to report a concern covered by this policy.

7 Safe programming

7.1 Livelihood training and job placement

- Training, starter kits and placements follow the participant's support plan (PRG-01) and are free of charge. No fee, deposit or 'commitment payment' is ever asked of a girl.
- Before GPAK introduces a participant to an employer, a trainer or a businesswoman mentor, the Programs Officer checks the business in person, records its name, location and owner, and confirms the work, hours, pay and place of work in writing.
- GPAK does not place anyone under 18 in paid work. A girl aged 16 or 17 may take part in skills training or an apprenticeship that is safe, limited in hours and does not keep her from school.
- GPAK never places a participant in live-in domestic work, in bars or lodgings, or in any job that requires her to move away from her county.
- Group farming and cooperative work keep a written record of each member's labour and share of the harvest or income. No member works to pay off a debt to another.
- The mentor mother checks in with every placed participant within two weeks and again at one month, in private, and reports any sign of exploitation to the Safeguarding Focal Point (SFP).

7.2 Housing and rent support

- Where GPAK supports rent, the tenancy is in the participant's name or her caregiver's, the landlord is visited and recorded, and the rent is paid by M-Pesa or bank transfer against a receipt.
- Housing support is never linked to work for the landlord or anyone else.
- Family reunification and family-based care come first for any girl under 18 (POL-01).

7.3 Transport and travel

- Transport support covers programme activities only (clinic, school, training, group sessions), against a documented appointment (PRG-02, form F9).
- No one working for GPAK takes a participant out of her county, or arranges for her to travel, without her written consent, a caregiver's consent where she is under 18 and not a mature minor, and the SFP's written approval.

7.4 Awareness for girls and families

- Peer support groups cover, at least once a year, how trafficking and exploitation start, fake job offers, 'sponsors', online grooming, and where to get help (116, 1195 and the police).
- Caregiver sessions under the family strengthening programme include the risks of early marriage and of sending girls to work in town.
- Girls are told clearly that GPAK's help is free and that no one may ask for anything in return (POL-01).

8 GPAK's own people: fair recruitment and labour

- Every employee has a written contract and every stipended community role a written agreement, explained in a language the person understands, before work starts (POL-10).
- Wages and stipends are paid in full, on time, by bank or M-Pesa, at no less than the legal minimum for the role and at the rate in the approved budget. No unlawful deductions are made.
- No one is charged a fee to apply for, obtain or keep a GPAK job or community role.
- GPAK never keeps an employee's or volunteer's original identity documents.
- No one under 18 is employed by GPAK or appointed to a community role.
- Working hours, leave and rest follow the Employment Act and POL-10.

9 Suppliers, contractors and partners

- Suppliers and contractors above the one-quotation threshold in POL-09 sign the supplier and partner declaration in Annex A before the first order. Partners sign it with their partnership agreement.
- Purchase orders and partnership agreements state that GPAK may end the contract at once if the supplier or partner breaches this policy.
- When buying items made by hand or locally (for example uniforms, sanitary pads, starter kits or sewing machines), the person buying asks who made the goods and does not buy where child labour is seen or suspected.
- A concern about a supplier or partner is reported under section 10 and recorded in the supplier file.

10 Recognising and reporting a concern

10.1 Signs to look out for

Any one of these is enough to talk to the SFP:

- a girl suddenly stops coming to groups or school and is said to have 'gone to work in town';
- she has new phones, clothes or money she cannot explain, or an older 'boyfriend' or 'sponsor' who controls where she goes;
- someone else holds her identity card, birth certificate or phone, or answers for her;
- she owes money to an employer, landlord or agent, or works long hours for little or no pay;
- she is being prepared for a marriage she does not want, or is under 18 and being married;
- she talks about a job offer far away that sounds too good to be true.

10.2 What to do

1. **Immediate danger:** call the police on 999 or 112, or for a child the Child Helpline on 116, and then the SFP. Do not try to rescue the girl yourself or confront the suspected trafficker.
2. **Every other concern:** tell the SFP straight away, and within 24 hours at the latest, using the safeguarding concern report (POL-01, form S1). Write down only what you saw and heard.
3. The SFP assesses the girl's safety and decides on referral within 24 hours, following the procedure in POL-01. Where a child is involved, the SFP reports to the Sub-County Children's Officer or the police gender desk as the law requires.
4. GPAK links the girl, with her consent, to medical care, counselling, shelter through a partner agency, legal aid and family support, and keeps supporting her through its programmes.
5. A concern about anyone working for GPAK is handled under POL-01 section 13. A concern about the Director goes to the Chair of the Advisory Committee.
6. Any funder whose programme is affected is told within 48 hours of GPAK becoming aware, or sooner if the grant agreement requires, without details that identify the girl.

Anyone can also report anonymously under the Whistleblowing Policy (POL-06). No one is penalised for reporting a concern in good faith.

10.3 A survivor-centred response

- The girl's safety, wishes and dignity come first. She is not blamed, and her situation is never discussed in a group or with her community.
- She is never asked to repeat her story more often than is needed.
- Her information is kept under POL-03, and only those who need it are told.
- GPAK does not make a girl's continued support depend on her agreeing to a police report, except where the law requires GPAK itself to report.

11 Consequences of a breach

- Staff: disciplinary action under POL-10, up to and including dismissal.
- Mentor mothers, community volunteers, interns and consultants: immediate suspension and the end of their agreement.
- Suppliers and partners: suspension or termination of the contract or partnership, and exclusion from future work with GPAK.
- Any conduct that may be a crime is reported to the police.

12 Roles, training and monitoring

Role	Responsibility
Advisory Committee	Approves this policy and receives an anonymised summary of concerns at each meeting.
Director	Owns the policy, makes sure everyone is trained, and acts on breaches by staff, suppliers and partners.
Safeguarding Focal Point	Receives and manages concerns, makes statutory reports, keeps the safeguarding log.
Programs Officer	Checks employers, trainers and landlords before referral (section 7), and keeps those records.
Finance Officer	Makes sure supplier declarations are signed before payment and that wages and stipends are paid in full.
Everyone	Follows this policy and reports concerns straight away.

Everyone this policy applies to is trained on it at induction, alongside POL-01 and POL-02, and receives a refresher every year. The SFP reviews the year's concerns and the checks under section 7 each year and reports to the Advisory Committee.

Related GPAK policies

Code	Policy	How it links
POL-01	Safeguarding and PSEA Policy	Reporting procedure, statutory reports, survivor support
POL-02	Code of Conduct	Conduct standards every person signs
POL-06	Whistleblowing Policy	Anonymous and protected reporting
POL-09	Procurement Policy	Supplier selection and contract terms
POL-10	Human Resources and Volunteer Policy	Contracts, wages, discipline
PRG-01	Participant Support SOPs	Support plans, livelihood and transport support

Document control, approval and review

Item	Detail
Document	POL-13, Anti-Human Trafficking and Child Labour Policy
Document type	Organisational policy
Version	1.0 (first issue)
Policy owner	Director
Approved by	Advisory Committee
Applies to	All GPAK staff, Advisory Committee members, mentor mothers, peer support group facilitators, community volunteers, interns, consultants, contractors, suppliers and partners working on GPAK activities
Review	Every two years, or earlier if the law, a funder requirement or an incident review shows that a change is needed.
Where it is kept	Signed original in the policy file at the GPAK office; print copy in the due-diligence file; a copy is given to everyone it applies to at induction

Public copy. Internal forms, annexes and signature pages are kept on file by GPAK and are available on request.